

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. f/k/a/ BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

RESPONDENTS' OPPOSED MOTION TO REOPEN DISCOVERY

Pursuant to FMC Rules 69, 71, and 216,¹ Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) respectfully move to reopen discovery in the above case for the limited purpose of vetting BBY’s claimed reparations to recover freight payments for the same shipments from multiple parties.

INTRODUCTION

On October 16, 2025, in a separate FMC action filed by Complainant against ocean carrier Yang Ming Marine Transport Corp. (“Yang Ming”), FMC Docket No. 23-10, Yang Ming filed a Motion to Reopen the Record and Supplement the Briefing on grounds that it uncovered evidence that BBY improperly claimed damages for the same shipments from multiple parties. Specifically, it found that Appendix A-1 to the report of BBY’s purported expert John McCown in Yang Ming’s case, denominated “NVO Shipments to Cover Yang Ming Shortfall (2021 Service Contract), CX-1284-1304,” covered periods that partially overlapped with Appendices A-1 and A-5, as described by Yang Ming in its public filing, relating to an unidentified ocean carrier, denominated “NVO Shipments to Cover [that ocean

¹ 46 CFR §§ 502.69, 502.71, and 502.216.

carrier's] Shortfalls.” See Ex. (1) hereto, FMC Docket No. 23-10, Doc. 67. Yang Ming also noted that “the lion’s share of the bills of lading for which claim is made in the instant proceeding are identical.” *Id.* While Yang Ming did not identify the other ocean carrier in its public filing, presumably it did so in its sealed filing.²

In BBY’s case against OOCL, BBY’s same purported expert John McCown produced multiple appendices A1 through A5, and B1 through B5. Appendix A1 in OOCL’s case was denominated “NVO Shipments to Cover OOCL Shortfall (2020 Service Contract),” and Appendix B1 was captioned “NVO Shipments to Cover OOCL Shortfall (2021 Service Contract).” If a comparison of the appendices in Yang Ming and OOCL’s cases, or in the other FMC cases filed by BBY against ocean carriers, demonstrate BBY is claiming damages for the same shipments from multiple parties, grounds exist to supplement the record with this evidence, including supplementing OOCL’s motion to strike John McCown as an expert witness.

AUTHORITY

With respect to supplementing the record, Respondent adopts Yang Ming’s recitation of the FMC’s applicable Rules and caselaw authority cited below, which the undersigned counsel has independently verified as accurate, and incorporates Yang Ming’s discussion herein by reference. See 46 C.F.R. §§ 502.69, 502.216; *International Longshoremen’s Ass’n v. Gateway Terminals, LLC*, No. 22-12, 2023 WL 4199207, *1 (F.M.C. Jun. 20, 2023); *Hapag-Lloyd, A.G. and Hapag-Lloyd (Am.) LLC – Possible Violations of 46 U.S.C. § 41102(C)*, No. 21-09, 2022 WL 1239377, *4 (F.M.C. Apr. 22, 2022); *Hangzhou Qianwang Dress Co. v. RDD*

² Yang Ming’s reply brief alludes to the “Evergreen list,” and we surmise that was the other carrier whose tables overlapped and included duplicative bills of lading with the appendices used in Yang Ming’s case.

Freight Int'l Inc., No. 17-02, 2018 WL 4191529, *3 (F.M.C. Aug. 29, 2018). The same is true with respect to the one-satisfaction rule and prohibition against double recoveries. See *Halprin v. Federal Deposit Ins. Co.*, No. 13 Civ. 1042, 2020 WL 4572929, *9 (W.D. Tex. Aug. 7, 2020) (“LandAmerica Title cannot recover the same fees from multiple parties, though it may recover them once. See *Malvino*, 840 F.3d at 234. Moreover, the one satisfaction rule and the prohibition of double recovery support an equitable holding that even if the election of remedies doctrine does not apply to the choice of from which party to recover, rather than on which theory to recover, LandAmerica Title may not recover both from Padilla and from Plaintiffs.”); *TCW, Inc. v. Evergreen Shipping Agency (Am.) Corp.*, No. 1966(I), 2021 WL 794708, *28 (F.M.C. Feb. 19, 2021).

ARGUMENT

OOCL filed a motion to strike John McCown as an expert witness because his opinions are not supported by any reliable methodology. McCown’s report includes Appendices A-1 and B-1, titled “NVO Shipments to Cover OOCL Shortfall,” listing thousands of shipments carried by NVOs during the relevant contract years.³ McCown asserts that these shipments, seen in light of the shortfall (asserted in the Complaint and unverified by McCown), show BBBY’s entitlement to damages for the cost delta between BBBY’s contract rates and the rates it paid NVOs. McCown testified he did not prepare the Appendices and did not know who did.⁴ He accepted the tables of NVO shipments in Appendices A-1 and B-1 to his Report and assumed they correlated to the alleged space shortfall without verifying whether any were related to a declined booking by OOCL. McCown admitted that he did not have information

³ McCown Report at Appendices A-1, B-1.

⁴ McCown Depo. 124:7-21.

as to whether any of the NVO shipments correlated to OOCL's alleged denials of a BBY booking request,⁵ and he admitted that he did not know whether they replaced OOCL's allegedly declined bookings.⁶ McCown agreed that Appendices A-1 and B-1 do not support the proposition for which they are used: "Q. So it's fair to say that you don't know whether any of these shipments replaced OOCL's declined bookings, correct? [Objection by BBY Counsel] A. I don't know that."⁷

Now we know from Yang Ming's Motion that BBY used similar tables in that case containing duplicative information set forth in other appendices relating to a third ocean carrier. If those tables or other tables used in yet other ocean carrier cases include data for service contract years 2020 and 2021 that are duplicative of the tables in OOCL's case, then further grounds exist to supplement the record and strike John McCown as an expert. Those other cases are: 20230930-DK-Butterfly-1, Inc. v. MSC Mediterranean Shipping Co. SA, Docket No. 23-12; 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. v. Evergreen Line Joint Service Agreement (FMC#011982), Docket No. 24-12; 20230930-DK-Butterfly-1, Inc. v. BAL Container Line, Docket No. 25-01; 20230930-DK-Butterfly-1, Inc. v. CMA CGM S.A., Docket No. 25-25 Given McCown's testimony in OOCL's case above and the information included in Yang Ming's motion, every reason exists to believe that the tables used by BBY in Yang Ming's and the other cases are duplicative of the tables used by BBY in OOCL's case. It remains BBY's burden to prove that the alleged freight charges incurred pertain to a particular ocean carrier, and BBY cannot carry that burden by alleging that all of its ocean carriers are responsible for such charges. The duplicative nature of the charges

⁵ *Id.*, 125:25-128:12.

⁶ *Id.*, 130:14-18.

⁷ *Id.*, 132:12-17.

presents *prima facie* evidence that BBBY does not know which carrier is allegedly responsible for such charges and is certainly germane to the claims presented.

OOCL has no objection to having the tables produced by John McCown in Yang Ming's and the other cases produced pursuant to a protective order. As Yang Ming's counsel wrote:

under Rule 26, as long as the material sought meets the low threshold of relevance, "[t]he burden of compelling discovery of 'confidential information' may be overcome by issuing 'a protective order.'" Diamond Serv's Mgt. Co. v. Knobbe, Martens, Olsen Bear, LLP, 339 F.R.D. 334, 340 (D.D.C. 2021) (quoting First Seabord Sur. v. Durkin & Devries Ins. Agency, 918 F. Supp. 2d 362, 383-384 (E. D. Pa. 2013) ("To the extent that the disclosure of these documents risks disturbing a settlement agreement or requires St. Paul to produce confidential information, a protective order could be requested to manage these risks")); see also, First Seabord, 918 F. Supp. 2d at 384 n.13 ("In the event that there is such an agreement that precludes disclosure, a protective order could be entered to ensure that no confidential or sensitive information is unnecessarily disclosed.").

See Ex. (2), FMC Docket No. 23-10, Doc. 70, at 4.

CONCLUSION

For the reasons set forth above, Respondent respectfully requests that discovery be reopened for the limited purpose of vetting BBBY's claimed reparations to recover freight payments for the same shipments from multiple parties, that the Presiding Officer order the parties to file a proposed schedule for the discovery at issue, and for all such other and further relief, which may be just and proper.

DATED: December 9, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on the 9th day of December 2025, a true and correct copy of the foregoing Motion to Reopen Discovery was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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CERTIFICATE OF CONFERENCE

On December 8, 2025, the undersigned counsel communicated with Complainant's counsel to ascertain whether Complainant would consent or oppose the foregoing motion. Complainant opposes same.

/s/ Rebecca A. Fenneman
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Exhibit A

DOCUMENT REDACTED